

Tragedy of a commons: on Wikimedia and the free flow of information

Courts and the state must not **throttle** free flow of information

While ordering the Wikimedia Foundation to **undo** changes on the Wikipedia page on Asian News International (ANI), the Delhi High Court said “people **at large** have a **tendency** to accept statements made on [Wikipedia’s] web pages ... as **gospel truth**”. In the **hearing** of the **defamation suit** that ANI had filed in 2024, the court had taken some questionable positions. For example, it **sought** the identities of the **volunteers** who edited the ANI page, whose **anonymity** the platform allows to protect them from **retaliation**. When the Foundation sought more time, the court observed: “We will close your business transactions here... We will ask the government to block Wikipedia... If you don’t like India, please don’t work in India.” The Foundation had **appealed** for its right to **safe harbour** under the Information Technology Act 2000, but the court **concluded** in favour of the **plaintiff** because, it observed, “statements on the page **pertaining to** the plaintiff are all sourced from ... editorials and opinionated pages”. Wikipedia is written and maintained by volunteers who are expected to follow the platform’s guidelines. **Unlike** newspapers or scientific journals, the encyclopedia does not **purport** to publish new information; volunteers are instead expected to repeat with **attribution** or reproduce with references, information originally published elsewhere, with a preference for **reputable** sources. **In this light**, the court order is **problematic**.

Elements of truth today **are often** mistaken to be someone’s opinions and vice versa. Politicians and government agencies have been known to punish civil society for repeating an **allegedly** offensive claim rather than **address** the original claim itself. Opinions are rejected even as data is **withheld** to deny those who express them opportunities to **align them** with verifiable facts. In this case, the court had expressed concern for ANI’s **credibility**, whether **volunteers** who edited the ANI page **had** followed the platform’s guidelines **in letter and spirit**, and whether the opinion as expressed on the page could be allowed to **stand**. In the process, it **established** that the Foundation’s ability to maintain the democratic structure that has allowed Wikipedia to become so popular and reliable is limited for India’s users: to the extent of public tolerance for certain opinions. **Ultimately**, the **aforementioned** “people’s tendency” and the state’s ability to influence it put Wikipedia and similar **decentralised collaborations** at risk. That is a tragedy. These collaborations adopted their designs to **sidestep the sort of** centralised information control that some **countries**, including India, **have** sought. Courts and the state would do well to **accommodate** these **collaborative** efforts rather than treat them with **contempt** — and the people should engage with these efforts and their guidelines as well. **[Practice]**

- Red/blue coloring of words in the sentence indicates subject verb relationship; where ‘red’ denote ‘subject’ and ‘blue’ denotes ‘verb’.

Vocabulary

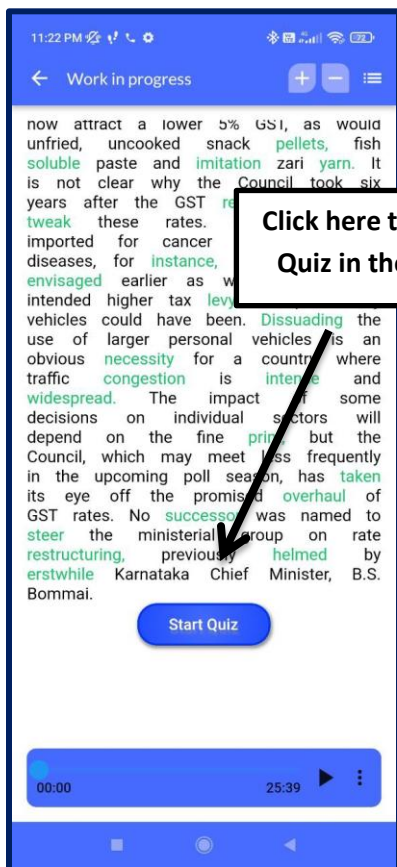
1. **Throttle** (verb) – hamper, choke, hinder, curb, stifle बाधित करना
2. **Undo** (verb) – reverse, cancel, revoke, retract, nullify उलटना
3. **At large** (phrase) – in general, broadly, commonly, widely, overall समग्र रूप में
4. **Tendency** (noun) – inclination, predisposition, leaning, trend, propensity प्रवृत्ति
5. **Gospel truth** (noun) – absolute truth, unquestionable fact, definitive truth, dogma, accepted reality परम सत्य
6. **Hearing** (noun) – court session, judicial proceeding, legal hearing, trial, case examination सुनवाई
7. **Defamation** (noun) – slander, libel, character assassination, calumny, disparagement मानहानि
8. **Suit** (noun) – lawsuit, legal case, litigation, court action, legal proceeding मुकदमा
9. **Seek** (verb) – attempt, strive, pursue, try to obtain, look for मांगना
10. **Volunteer** (noun) – helper, contributor, unpaid worker, participant, selfless helper स्वयंसेवी
11. **Anonymity** (noun) – namelessness, obscurity, secrecy, incognito, privacy गुमनामी
12. **Retaliation** (noun) – revenge, reprisal, vengeance, payback, counterattack प्रतिशोध
13. **Appeal** (verb) – request, plead, petition, call for, ask अपील करना
14. **Safe harbour** (noun) – a legal provision that protects individuals or organizations from liability or penalties under specific circumstances सुरक्षित आश्रय
15. **Conclude** (verb) – finish, end, deduce, decide, draw to a close निष्कर्ष निकालना
16. **Plaintiff** (noun) – complainant, claimant, petitioner, accuser, initiator of suit वादी
17. **Pertain** (to) (verb) – relate to, concern, apply to, connect with, be relevant to संबंधित होना
18. **Unlike** (preposition) – different from, not like, dissimilar to, contrary to, in contrast to के विपरीत
19. **Purport** (verb) – claim, intend, profess, appear to be, allege दावा करना / इंगित करना
20. **Attribution** (noun) – credit, acknowledgment, citation, referencing, recognition श्रेय देना

21. **Reputable** (adjective) – respected, trustworthy, reliable, well-regarded, esteemed प्रतिष्ठित
22. **In this light** (phrase) – considering this, in view of this, from this perspective, given the situation, in this context इस दृष्टि से
23. **Problematic** (adjective) – challenging, troublesome, difficult, awkward, questionable समस्याजनक
24. **Often** (adverb) – frequently, regularly, commonly, repeatedly, many times अक्सर
25. **Allegedly** (adverb) – supposedly, reportedly, purportedly, apparently, according to claims कथित रूप से
26. **Address** (verb) – deal with, tackle, handle, respond to, attend to समाधान करना
27. **Withhold** (verb) – hold back, refrain from giving, keep, retain, conceal रोकना
28. **Align** (with) (verb) – match, coordinate, be in agreement, conform, line up अनुरूप होना
29. **Credibility** (noun) – trustworthiness, reliability, believability, authority, integrity विश्वसनीयता
30. **In letter and spirit** (noun) – thoroughly, wholeheartedly, completely, truly, fully संपूर्ण रूप से
31. **Stand** (verb) – remain valid, stay in effect, hold, continue, persist बना रहना
32. **Establish** (verb) – set up, found, confirm, ascertain, validate स्थापित करना
33. **Ultimately** (adverb) – eventually, finally, in the end, in conclusion, at last अंततः
34. **Aforementioned** (adjective) – previously mentioned, referred to earlier, above-stated, earlier noted, cited above उपर्युक्त
35. **Decentralised** (adjective) – dispersed, distributed, devolved, diffused, non-centralized विकेन्द्रीकृत
36. **Collaboration** (noun) – cooperation, partnership, teamwork, alliance, joint effort सहयोग
37. **Sidestep** (verb) – avoid, evade, bypass, dodge, circumvent बच निकलना
38. **The sort of** (phrase) – the kind of, the type of, the style of, the variety of, the category of उस प्रकार का
39. **Accommodate** (verb) – adapt to, adjust to, fit, oblige, make room for समायोजित करना
40. **Collaborative** (adjective) – cooperative, joint, collective, united, shared सहयोगात्मक
41. **Contempt** (noun) – disdain, scorn, disrespect, derision, disregard अवमानना

Summary of the Editorial

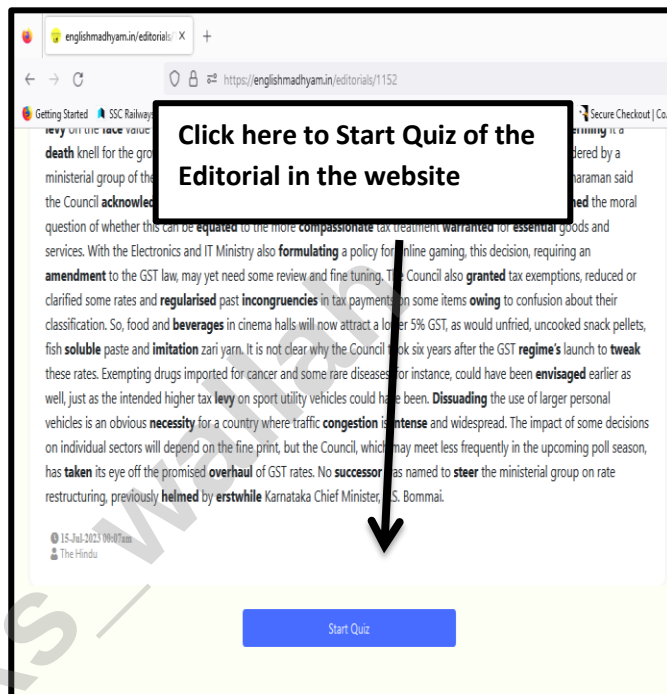
1. **Delhi High Court Ruling** – The court ordered Wikimedia to reverse changes on ANI's Wikipedia page, citing public reliance on Wikipedia as unquestioned truth.
2. **Defamation Suit** – The case stemmed from a 2024 defamation suit filed by ANI against Wikipedia content.
3. **Anonymity Challenged** – The court questioned the anonymity of Wikipedia editors, which Wikimedia protects to shield volunteers from retaliation.
4. **Hostile Remarks** – The court made harsh remarks against Wikimedia, threatening to block Wikipedia in India.
5. **Safe Harbour Denied** – Wikimedia's plea for safe harbour under the IT Act, 2000, was rejected by the court.
6. **Use of Sources Questioned** – The court objected that the ANI page used editorials and opinion-based sources.
7. **Wikipedia's Model** – Wikipedia is a volunteer-based platform that summarizes already published, reputable information with citations.
8. **Court's Misunderstanding** – The judgment misunderstands Wikipedia's nature as a secondary source and democratic knowledge platform.
9. **Blurring of Fact and Opinion** – In the current climate, facts are often mistaken as opinions and punished accordingly.
10. **Punishing Repeaters, Not Originators** – Governments sometimes penalize those who echo controversial claims, instead of addressing the original claims.
11. **Suppression of Data** – Data is often withheld, making it difficult for opinions to be substantiated or corrected with facts.
12. **Control Over Information** – The court's stance suggests that tolerance for opinions influences Wikipedia's functionality in India.
13. **Threat to Decentralized Models** – State and judicial intolerance risks damaging open, collaborative platforms like Wikipedia.
14. **Need for State Support** – Instead of treating platforms with contempt, the state should support and accommodate them.
15. **Public Responsibility** – Citizens must engage critically and responsibly with collaborative information platforms and their guidelines.

Practice Exercise: SSC Pattern Based



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